

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

X

YAHTEK JOHNSON

Plaintiff,

-against-

SUMMONS

Date Index No. Purchased  
3/23/2023

Plaintiff Designates Bronx County  
as the Venue for Trial Pursuant to  
C.P.L.R. Section 503

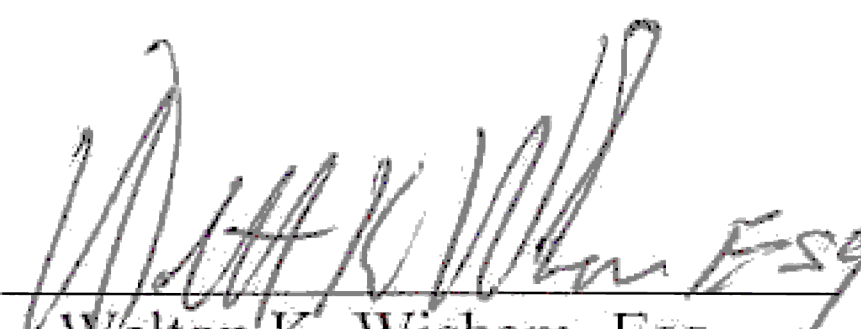
CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,  
DETECTIVE DIEGO MARIN ,46<sup>th</sup> PRECINCT, SHIELD NO. 6240,  
IN HIS INDIVIDUAL CAPACITY.

Defendants,

X

**You are hereby summoned** to answer the complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service ( or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 20, 2023  
Bronx, New York

By  Esq.  
Welton K. Wisham, Esq.  
The Law Offices of Welton K. Wisham  
1200 Waters Place, Suite 105  
Bronx, New York 10461  
718- 924-3557 Office  
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Defendants Address:

The New York City Police Department  
One Police Plaza,  
York, New York 10007

City of New York Department of Law  
100 Church Street  
New York, New York 10007



**SUPREME COURT OF THE STATE OF NEW YORK**  
**COUNTY OF BRONX** X

YAHTEK JOHNSON

Plaintiff,

- against -

Index No.

ECF

**Complaint**

Plaintiff Designates Bronx  
 County as the Place of Trial  
 Jury Trial Demanded

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,  
 DETECTIVE DIEGO MARIN ,46<sup>th</sup> PRECINCT, SHIELD NO. 6240,  
 IN HIS INDIVIDUAL CAPACITY.

Defendants,

X

Plaintiff, **Yahtek Johnson**, by his attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for his Complaint, alleges, upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and Police officer Diego Marin who is believed to be assigned to the 46<sup>th</sup> police precinct on the date the incident complained of herein.

**PRELIMINARY STATEMENT**

1. This action arises out of Defendants' role in Plaintiff's unreasonable search, seizure, arrest, malicious prosecution and violation of Plaintiff's rights arising under the Due Process Clause of the Fourth and Fourteenth Amendment to the Constitution of the United States and pursuant to the common law of the State of New York and Article 1 Section 12 of the Constitution of the State of New York.

2. On or about July 16, 2022, Mr. Johnson and a female companion were getting off an elevator inside Plaintiff's building located at 2333 Webster Ave. Bronx, New York at approximately 10:00 pm.

3. Plaintiff saw his next-door neighbor, Joan Bellber and a group of her friends all of whom appeared intoxicated.
4. Ms. Bellber began to harass Mr. Johnson and his companion in the hallway.
5. Mr. Johnson attempted to ignore Ms. Bellber and proceeded to go inside his apartment with his companion.
6. Minutes later Ms. Bellber began to repeatedly knock on Plaintiff's door demanding to know who the woman was the Mr. Johnson had brought inside his residence.
7. Plaintiff's companion became frightened and concerned that Ms. Bellber wanted to cause her harm and left the apartment and encountered Ms. Bellber who was screaming in the face of Plaintiff's companion demanding to know what she was doing with the Plaintiff..
8. Ms. Bellber attacked Plaintiff's companion in the hallway. The woman was forced to reenter Plaintiff's apartment.
9. Weeks later, on August 16, 2022, Mr. Johnson was arrested by officer Diego Marin who accused Mr. Johnson of (1) Attempted Assault, P.L. Section 110-120(01), (2) Assault with Intent to Cause Physical Harm with a Weapon, P.L. Section 120.05 (02), (3) Attempted Assault with Intent to Cause Serious Physical Harm, P.L. Section 110-120(05)(01), (4) Assault with Intent to Cause Physical Injury, P.L. Section 120.00 (01), (5) Criminal Possession of a Weapon, P.L. Section 265.01(020, and Harassment with Physical Contact, P.L. Section 240.26.(01).
10. Mr. Johnson was arraigned on or about August 17, 2022, and remanded to Rikers Island on \$ 75,00 bail.
11. Upon information and belief, Mr. Yahtek Johnson testified in front of the Grand Jury that the allegations were false and that there was no credible evidence to support the charges which officer Marin knew or should have known were fabricated.



12. The Grand Jury failed to indict Mr. Johnson.

13. Moreover, all charges against Mr. Johnson were dismissed by the Grand Jury: which issued an **“Order to Dismiss Prosecutor’s Information directed by Grand Jury.”**

14. That on August 23, 2022, all charges against Mr. Johnson were dismissed by Order of the Grand Jury under Docket No. CR-014413-22BX

15. That officer Marin failed to produce any form of credible, reliable and objective information or evidence to the Bronx District Attorney’s Office which a reasonable juror would have reasonably believed that Mr. Johnson had assaulted Joan Bellber.

16. Plaintiff was deprived of his liberty for seven (7) days without probable cause.

17. Officer Marin intended to confine Mr. Johnson and deprive Plaintiff of his rights and privileges under the Constitution of the United States without probable cause.

18. Officer Marin acted without privilege when he searched, seized, arrested and commenced the prosecution of the Plaintiff without probable cause.

19. Mr. Johnson was held for seven days in Rikers Island and was caused to suffer severe emotional distress.

20. That this action is brought pursuant to 42 U.S.C. Section 1983, for the violation of Plaintiff’s rights arising under the Fourth and Fourteenth Amendment to the Constitution of the United States and pursuant to Article I Section 12 of the Constitution of the State of New York for injuries Plaintiff suffered by the Defendants pertaining to Plaintiff’s False Arrest and Imprisonment and for Municipal Liability against the City of New York pursuant to Respondeat Superior.

### JURISDICTION AND VENUE

21. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the State of New York.

22. This action arises under the Fourth and Fourteenth Amendment to the Constitution of the United States pursuant to 42 U.S.C Section 1983 and under Article I Section 12 of the Constitution of the State of New York.

23. This Court has concurrent jurisdiction over Plaintiff's federal civil rights causes of action based on 42 U. S. Code Section, 1983.

24. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

### PARTIES

25. Plaintiff, Yahtek Johnson was and still remains at all relevant times a resident of the State of New York.

26. Mr. Johnson is a citizen of the United States.

27. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

28. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendant, police officer Diego Marin.



29. The City of New York is responsible for enforcing the rules of the New York City Police Department and the police officers within the New York City Police Department and for ensuring that the Defendants police officers named herein and all other New York City Police Officers obey the laws of the State of New York and the laws of the Constitution of the United States.

30. That at all relevant times Defendant, Diego Marin was acting under the color of state law and within the scope of his employment with the New York City Police Department.

31. At all times relevant herein the Defendants, as police officers of the City of New York, were and still remain police officers employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department and acted within the scope of their employment and as such acted under color of state law.

#### **JURY DEMAND**

32. Plaintiff demands trial by jury.

#### **NOTICE OF CLAIM**

33. Plaintiff, in furtherance of his New York State causes of action, Mr. Johnson filed a timely Notice of Claim on or about November 12, 2022, well within ninety days of the incident alleged herein against the named Defendants and the City of New York in compliance with General Municipal Law Section 50-e.

34. The Comptroller of the City of New York acknowledge receipt of Mr. Johnson's Notice of Claim on November 22, 2022, by assigning Claim Number 2022PI033146.

35. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.



36. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the Notice of Claim.

37. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

38. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

39. That by reason of the foregoing, Plaintiff, Yahtek Johnson has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

### **STATEMENT OF FACTS**

40. On or about July 16, 2022, Claimant and a female friend of his were getting off the elevator on the third floor inside 2333 Webster Ave, Bronx, New York, Claimant's residence at approximately 10:pm.

41. Plaintiff Johnson observed his next-door neighbor, Joan Bellber and her friends who appeared intoxicated and began to harass Mr. Johnson because Ms. Bellber knew that Plaintiff was having an affair with another women.

42. Mr. Johnson was attempting to hide his affair from his neighbor who Ms. Bellber knew was not the women living with Mr. Johnson.

43. In fact, as soon as Ms. Bellber saw Mr. Johnson , Ms. Bellber uttered " what's up boo boo, who's that ?".

44. Plaintiff informed Ms. Bellber that the woman was his sister in order to conceal his affair from Ms. Bellber who knew the woman who had been living with the Plaintiff prior to this incident.



45. Mr. Johnson proceeded to place his key inside the lock to the door of his apartment and went inside with his female companion.

46. Suddenly, Joan Bellber began to violently knock on the door to Mr. Johnson's apartment in an attempt to interfere with his privacy.

47. Ms. Bellber continued to bang repeatedly on Plaintiff's door.

48. Mr. Johnson informed his companion that his neighbor knew he was having an affair, which caused Plaintiff's companion to leave his apartment.

49. That soon thereafter, Mr. Johnson's companion returned to his apartment screaming and crying that she had been attacked by Joane Bellber and her group of friends, "they're jumping me"!

50. Plaintiff opened the door and allowed his companion to reenter his apartment for her safety.

51. Weeks later, on August 16, 2022, Mr. Johnson was arrested by officer Detective Diego Marin and charged with the aforementioned crimes.

52. Mr. Johnson was held in custody of the New York City Department of Correction, 46<sup>th</sup> precinct and remanded to Rikers Island at the Anna K. Kross Center, (AMKC) in Rikers Island.

53. Bail of \$75,000 was set at the arraignment for which Plaintiff was unable to pay.

54. Mr. Johnson was held in custody without probable cause in Rikers Island for seven days.

55. While in custody inside AMKC, Mr. Johnson witnessed the death of an inmates who committed suicide by hanging.

56. That Plaintiff suffered emotional distress as he was forced to see human beings hanging inside their jail cells..

57. Mr. Johnson was forced to recall the events inside Rikers Island where his father had been held years earlier which contributed to Plaintiff's claims for emotional stress for the seven days held in Rikers without legal justification.

### **Grand Jury Dismissal**

58. Mr. Johnson chose to testify on his behalf in front of the Grand Jury regarding the charges submitted to the jury by officer Marin and the Bronx District Attorney's office.

59. Mr. Jonson vehemently insisted that he was innocent and that the police officer was wrong to have arrested him and caused his incarceration which was unlawful.

60. The Grand Jury failed to indict Mr. Johnson and dismissed all charges against the Plaintiff by issuing an "**Order to Dismiss Prosecutor's Information directed by Grand Jury.**"

61. That on August 23, 2022, all charges against Mr. Johnson were dismissed by Order of the Grand Jury under Docket No. CR-014413-22BX

62. That officer Marin failed to produce any form of credible, reliable and objective information or evidence to the Bronx District Attorney's Office which a reasonable juror would have reasonably believed that Mr. Johnson had assaulted Joan Bellber.

63. That officer Marin lacked probable cause to have reasonably believed that Plaintiff had committed the alleged crimes as charged.

64. Officer Marin knew or should have known that Mr. Johnson had not committed the alleged offenses which resulted in his wrongful arrest and incarceration and deprivation of liberty for seven (7) days.



**AS AND FOR A FIRST CAUSE OF ACTION AGAINST POLICE OFFICER DIEGO  
MARIN FOR FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO 42.  
U. S. C. SECTION 1983**

65. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 64", with the same force and effect as though more fully set forth at length herein.

66. That at all time herein mentioned Defendant Police Officer, Diego Marin, falsely arrested, imprisoned and unreasonably seized Mr. Johnson on August 16, 2022, without probable cause as set forth more fully in the paragraphs above.

67. That the Defendant officer caused Plaintiff Johnson to be held in custody for seven days without probable cause.

68. Mr. Johnson was conscious of his detention, arrest, and seizure and did not consent to his confinement.

69. That the Defendant police officers, knew or should have known that they lacked probable cause to arrest and seized the Plaintiff and that Plaintiff had not been engaged in any criminal activity at the time of his arrest.

70. Mr. Johnson was wrongfully and unjustifiably held against his will and unreasonably seized, and deprived of his liberty without due process of law.

71. That officer Marin abuse his authority and position as New York City Police officer.

72. That officer Marin knowingly and willfully deprived Mr. Johnson of his right to free from unreasonable seizure and deprivation of liberty under the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

73. The Defendant officers' actions were willful , wanton and reckless.



74. That during Plaintiff's unlawful and wrongful incarceration, Mr. Johnson was handcuffed, searched, and subjected to humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn, by Defendant officer Marin.

75. As a direct and proximate result of Officer Marin's misconduct and abuse of authority described above, Plaintiff Yahtek Johnson suffered emotional pain and distress for which he now seeks compensation which exceeds that of all lower jurisdictions.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST POLICE OFFICER DIEGO  
MARIN FOR VIOLATING PLAINTIFFS' RIGHT TO BE FREE FROM  
UNREASONABLE SEARCH AND SEIZURE PURSUANT TO 42 U.S CODE SECTION  
1983.**

76. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "75," with the same force and effect as though more fully set forth at length herein.

77. Plaintiff in this instant action commenced this lawsuit against the Defendants pursuant to 42 U.S.C Section 1983 which states in relevant part that:

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress... 42 U.S.C Section 1983,

78. Plaintiffs' federal claims are brought pursuant to the Fourth Amendment and Fourteenth Amendments to the Constitution of the United States for the Defendants unreasonable search and seizure of Plaintiff Yahtek Johnson.

79. Officer Marin clearly lacked probable cause to have reasonably believed the Mr. Johnson had assaulted Joan Bellber.



80. Officer Marin waited several weeks before he arrested Plaintiff Johnson on a July 16, 2022, incident alleged by Joan Bellber.

81. That the Grand Jury failed to indict Mr. Johnson and instead issued an Order of Dismissal on August 23, 2022.

82. That the manner in which the Plaintiff was seized and held in custody was unreasonable under the circumstances as set forth herein.

83. That officer Marin and other unknown police officers conspired together with other New York City Police officers to violate Plaintiffs' rights to be free from unreasonable search, seizure and deprived Plaintiff of his liberty without due process of law.

84. That in the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard to Plaintiff's Constitutional rights.

85. Mr. Johnson was thus unlawfully and unreasonably deprived of his rights, privileges and immunities secured to him under the Constitution and laws of the United States, and the State of New York including but not limited to the Plaintiffs' rights secured under the Fourth, and Fourteenth Amendment to the Constitution of the United States, and pursuant to Article I, Section 12 of the Constitution of the State of New York.

86. That the officer Marin acted in his individual, and official capacity, and under color of law, conspired together and with others, and reached a mutual understanding to undertake a course of conduct that violated Plaintiff's rights, privileges, and immunities thereof.

87. As a direct and proximate result of the aforementioned misconduct Mr. Johnson was unreasonably searched, seized, and falsely imprisoned in violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

88. By reason of the foregoing, Plaintiff, Yahtek Johnson was intentionally confined without privilege and without probable by the Defendant, police officer Diego Marin.

89. As a consequence thereof, Plaintiff Johnson has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW  
YORK AND POLICE OFFICER DIEGO MARIN PURSUANT TO 42 U.S.C  
SECTION 1983, FOR VIOLATING PLAINTIFF'S RIGHTS PROTECTED UNDER  
THE DUE PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT TO THE  
CONSTITUTION OF THE UNITED STATES**

90. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "89", with the same force and effect as though more fully set forth at length herein.

91. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Plaintiffs' right to free from the deprivation of liberty without due process of law,

92. That the Defendant Officer's detainment and seizure of the Plaintiff, including the unreasonable and unlawful imprisonment of the Plaintiff, deprived Plaintiff of his right to liberty for approximately seven days without probable cause or legal justification.

93. That officer Marin charged Mr. Johnson with committing, of (1) Attempted Assault, P.L. Section 110-120(01), (2) Assault with Intent to Cause Physical Harm with a Weapon, P.L. Section 120.05 (02), (3) Attempted Assault with Intent to Cause Serious Physical Harm, P.L. Section 110-120(05)(01), (4) Assault with Intent to Cause Physical Injury, P.L. Section 120.00 (01), (5) Criminal Possession of a Weapon, P.L. Section 265.01(020, and Harassment with Physical Contact, P.L. Section 240.26.(01).

94. The Grand Jury dismissed all charges on August 23, 2022.



95. As direct and proximate result of the Defendant officers' conduct, Plaintiffs' rights to Due Process of Law were violated causing Plaintiff to suffer humiliation, degradation.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF  
AGAINST POLICE OFFICER DIEGO MARIN FOR MALICIOUS PROSECUTION  
PURSUANT TO 42 U.S.C. SECTION 1983.**

96. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "95", with the same force and effect as though more fully set forth at length herein

97. That the Defendants, their agents, servants and /or employees, without cause or justification, intentionally and maliciously initiated the underlying criminal proceedings against Plaintiff Yahtek Johnson without probable cause to have reasonably believed Mr. Johnson had committed the underlying criminal acts for which he was accused.

98. That the Defendant, Diego Marin chose to continue the prosecution against Mr. Johnson knowing the continuation lacked probable cause.

99. Plaintiff was deprived of his right to liberty for seven days as the Grand Jury failed to indict and dismissed all charges against Mr. Johnson.

100. The criminal proceeding against Plaintiff Johnson was favorably terminated and sealed on August 23, 2022.

101. That the prior criminal proceeding against Mr. Johnson was initiated without probable cause.

102. That officer Marin initiated the underlying criminal proceedings against the Plaintiff without probable cause.

103. That lack of probable cause for an arrest is indicative of malice.

104. That officer Marin initiated the criminal prosecution against Plaintiff with malice.



105. As direct and proximate result of the Defendant officers' misconduct, Plaintiff suffered extreme mental anguish, humiliation, pain and emotional distress from his wrongful and illegal incarceration in Rikers Island..

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF  
AGAINST POLICE OFFICER DIEGO MARIN FOR MALICIOUS PROSECUTION  
PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK.**

106. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered"1 through "105", with the same force and effect as though more fully set forth at length herein.

107. That the Defendants, their agents, servants and /or employees, without cause or justification, intentionally and maliciously initiated the underlying criminal proceedings against Plaintiff Johnson without probable cause to have reasonably believed Mr. Johnson has committed the underlying criminal acts for which he was accused.

108. That the Defendant officers continued the prosecution against Mr. Johnson without probable cause.

109. Plaintiff was deprived of his right to liberty for seven days and held captive in Rikers Island due to his wrongful arrest.

110. The criminal proceeding against Plaintiff Johnson was favorably terminated and sealed on August 23, 2022.

111. That the underlying criminal proceeding against Mr. Johnson was initiated without probable cause.

112. That officer Marin initiated the underlying criminal proceedings against the Plaintiff without probable cause to have reasonably believed that Mr. Johnson had committed the alleged criminal offenses thus the arrest was conducted with malice.

113. As direct and proximate result of the Defendant officers' misconduct, Plaintiff suffered extreme mental anguish , humiliation, pain and emotional distress from his wrongful and illegal incarceration.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK  
PURSUANT TO COMMON LAW STATE OF NEW YORK UNDER RESPONDEAT  
SUPERIOR**

114. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "113", with the same force and effect as though more fully set forth at length herein.

115. That the City of New York hired and supervised Defendant, Diego Marin as a New York City Police officer who seized, arrested and commenced the prosecution of Plaintiff Yahtek Johnson without probable cause.

116. That officer Marin committed the wrongs stated herein without probable cause, and without legal justification while acting under color of law and within the scope of his employment with the New York City Police Department.

117. As a result, the City of New is liable for the unlawful acts of their employees including officer Marin under the well settled and legally recognized doctrine of Respondeat Superior.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST POLICE OFFICER  
DIEGO MARIN FOR THE INTENTIONAL INFLICTION OF EMOTIONAL STRESS  
PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK.**

118. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "117" with the same force and effect as though more fully set forth at length herein.



119. That the Defendant, Diego Marin as an agent, servant and/or employee of the New York City Police Department, engaged in actions for which the officer intended to inflict emotional trauma on the Plaintiff,

120. That, Yahtek Johnson suffered emotional distress from the wrongful imprisonment caused by officer Marin 's misconduct set forth in the proceeding paragraphs.

121. That by reason of the foregoing, the Plaintiff has suffered mental and emotional distress due to Defendants' unlawful and reckless actions as more fully described herein.

122. That the misconduct as more fully described above inflicted by police officer Marin was extreme and outrageous conduct, and intended to cause severe emotional distress.

123. The acts committed against the Plaintiff by the Defendant police officers were intended to cause the Plaintiff extreme emotional injuries to his mind and body.

124. That as a direct and proximate result of the misconduct and abuse of authority by Defendant police officer, Marin, Plaintiff, Yahtek Johnson has been injured and has sustained the damages hereinbefore alleged.

125. As a direct and proximate result, Mr. Johnson suffered the injuries and damages described above.

**AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS FOR  
FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO NEW YORK STATE  
LAW**

126. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 125", with the same force, and effect, as though more fully set forth at length herein.

127. Defendants initiated Plaintiff's imprisonment and detention without probable cause to have reasonably believed that Mr. Johnson had been involved in any form of criminal activity..



128. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely imprisoned, detained, restrained, assaulted, and battered Plaintiff, Yahtek Johnson.

129. That at all times herein mentioned, the Plaintiff was falsely imprisoned, detained, and restrained by the Defendants police officers who were acting under color of law and within the scope of their employment.

130. That Mr. Johnson was not free to leave or move about due to his unlawful seizure by the Defendant police officer Diego Marin.

131. Mr. Johnson was conscious of his confinement and did not consent to such confinement.

132. That as a direct and proximate result of the physical restraint of the Plaintiff by the Defendants, their agents, servants and/or employees, Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom under the laws of the State of New York pursuant to Article 1 Section 12..

133. That the Plaintiff was intentionally confined without privilege or probable cause and that the Defendants could not have reasonably believed that Mr. Johnson had committed a crime.

134. That the false imprisonment, detention, and restriction of Plaintiff's freedom, constituted a malicious act, and was a wanton and reckless degradation of the plaintiff's liberty and freedom.

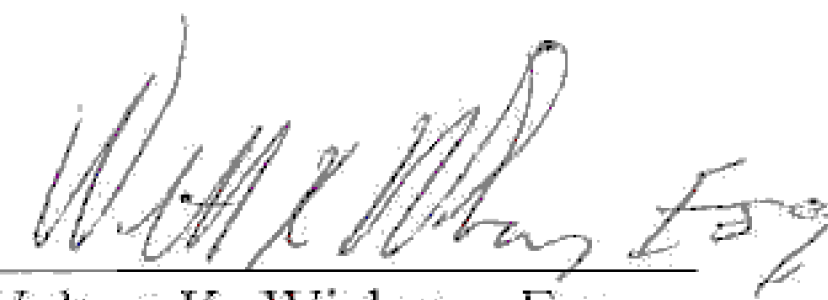
135. That by reason of the foregoing Plaintiff, has been damaged a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**WHEREFORE** , Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

- A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.
- B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.
- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated; March 20, 2023

Bronx, New York

By   
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The Law Office of Welton K. Wisham  
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(718) 924- 3557 Office  
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SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

X

YAHTEK JOHNSON

AFFIRMATION

Plaintiff,

-against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,  
DETECTIVE DIEGO MARIN, 46<sup>th</sup> PRECINCT, SHIELD NO. 6240,  
IN HIS INDIVIDUAL CAPACITY.

Defendants,

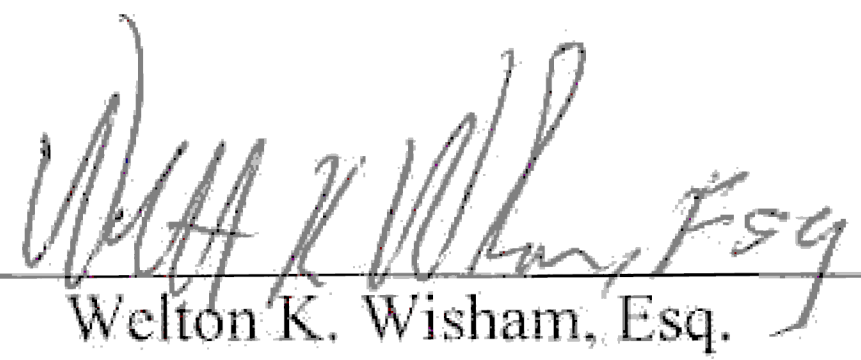
X

I, **Welton K. Wisham**, am an Attorney at Law duly admitted to practice law in the Courts of the State of New York, and say under penalty of perjury that: I am the attorney of record for the Plaintiff, Mr. Yahtek Johnson.

That I have read the annexed Summons and Complaint and know the contents hereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is base upon information contained within my case file and the investigation conducted with the Plaintiff.

The reason I make this Affirmation instead of the Plaintiff is that at the time of this filing Plaintiff resides in a county outside that which this affiant maintains an office.

Dated: March 23, 2023  
Bronx, York,

By   
Welton K. Wisham, Esq.  
The Law Office of Welton K. Wisham  
1200 Waters Pl. Suite 105  
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